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U.S. Department of State Diplomacy in Action

Papua New Guinea

Bureau of Democracy, Human Rights, and Labor

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Papua New Guinea is a federal multiparty parliamentary democracy with a population of approximately 6.1 million and more than 800 indigenous tribes. Citizens elect a unicameral parliament. The most recent general elections were held in 2002; there were localized instances of voter intimidation, violence, and influence peddling. A coalition government, led by Prime Minister Michael Somare, was formed following the election. While civilian authorities generally maintained effective control of the security forces, there were some instances in which elements of the security forces acted independently of government authority.

The government generally respected the human rights of its citizens; however, there were serious problems in some areas. Human rights abuses included arbitrary or unlawful killings by police; police abuse of detainees, including of children; poor prison conditions; lengthy pretrial detention; infringement of citizens' privacy rights; government corruption; violence and discrimination against women and children; discrimination against persons with disabilities; and continuing intertribal violence.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

The government or its agents did not commit any politically motivated killings; however, police killed a number of persons during the year. According to police reports, most killings occurred during gunfights with criminal suspects who were resisting arrest. However, public concern about police violence continued. On September 29, police reportedly shot four individuals suspected of armed robbery, killing one. On November 3, police reportedly killed one person in an exchange of gunfire at a Port Moresby hotel. The police members involved in the killings were suspended pending investigation of each case, but no results had been released at year's end.

Investigation continued of an October 2005 incident at the Porgera primary school in Enga Province in which police killed three persons and reportedly injured at least 20 others; however at year's end police had not sent the cases to the public prosecutor.

As modern weapons, including assault rifles, became more readily available, the number of deaths resulting from violent tribal conflicts continued to increase (see section 5).

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibits such practices; however, individual police members frequently beat and otherwise abused suspects during arrests, interrogations, and in pretrial detention. There were numerous press accounts of such abuses, particularly against young detainees.

In January correction officers at Buimo prison beat and sexually abused young male detainees by forcing them to have anal sex with each other. At year's end no action had been taken against the officers, and they continued to work at the prison. In October the nongovernmental organization (NGO) Human Rights Watch (HRW) reported continued widespread police abuse of children in custody, including severe beatings and sexual abuse.

Prison and Detention Center Conditions

Prison conditions were poor, and the prison system suffered from serious underfunding. Neither prisons nor police detention centers had medical care facilities. In some police holding cells, detainees lacked bedding and sufficient food and water. Overcrowding in the prisons was a serious problem. During most of the year, 15 of the country's 17 jails were operational; however, some prisons remained closed because of life threatening conditions. Some prisons and police stations in urban areas were seriously overcrowded. In rural areas infrequent court sessions and bail restrictions for certain crimes exacerbated overcrowding (see section 1.d.).

Male and female inmates usually were housed separately, but some rural prisons lacked separate facilities, and there were reports of assaults on female prisoners. There were no separate facilities for juvenile offenders; however, in some prisons juveniles were provided with separate sleeping quarters. HRW reported that juveniles routinely were held with adults in police lockups, placing them at risk of rape and other forms of violence. Pretrial detainees were not separated from convicted prisoners. HRW reported that 75 percent of all children were assaulted while in police custody.

Prison escapes were common, even from high security installations. On September 6, at least 22 detainees reportedly escaped from the Lae police station jail.

The government permitted prison visits by human rights observers.

d. Arbitrary Arrest or Detention

The constitution prohibits arbitrary arrest and detention, and the government generally observed these prohibitions.

Role of the Police and Security Apparatus

A commissioner who reports to the minister for internal security heads the country's national police force, the Royal Papua New Guinea Constabulary. Internal divisions related to clan rivalries and a serious lack of resources negatively impacted police effectiveness throughout the year. In October the National Executive Council suspended the commissioner who had replaced much of the police leadership in an effort to address corruption and inefficiency. During the year some police officials were suspended for involvement in corruption or other criminal activity.

Police shootings are investigated by the police department's Internal Affairs Office and reviewed by a coroner's court. If the court finds that the shooting was unjustifiable or due to negligence, the police officers involved are tried. Families of persons killed or injured by police may challenge the coroner's finding in the National Court, with the assistance of the Public Solicitor's Office. Cases of accidental shootings of bystanders by police during police operations are also investigated and reviewed by a coroner's court.

During the year the government continued to negotiate with Australia the implementation of a scaled down version of the Australian sponsored Enhanced Cooperation Program, under which Australian federal police officers would work alongside the constabulary to improve police practices. The program was terminated in May 2005 when the Supreme Court ruled that immunity of Australian officers from prosecution in local courts, which had been a condition of the program, was unconstitutional.

Arrest and Detention

Under the law, to make an arrest police must have reason to believe that a crime was committed, is in the course of being committed or will be committed. A warrant is not required, and police made the majority of arrests without one. Citizens may make arrests under the same standards as the police, but this was rare in practice. Police, prosecutors, and citizens may apply to a court for a warrant; however, police normally did so only if they believed it would assist them in carrying out an arrest.

Under the law, only National or Supreme Court judges may grant bail to persons charged with willful murder or aggravated robbery. In all other cases, the police or magistrates may grant bail. Arrested suspects have the right to legal counsel, be informed of the charges against them, and have their arrests subjected to judicial review; however, the government did not always respect these rights. Access to counsel by detainees was not a problem during the year. There were reported instances of politicians directing or bribing police officials to arrest or intimidate individuals seen as political enemies or as possible whistle blowers on corruption or misuse or theft of public assets.

Due to very limited police and judicial resources and a high crime rate, suspects often were held in pretrial detention for lengthy periods. Although pretrial detention is subject to strict judicial review through continuing pretrial consultations, the slow pace of police investigations and occasional political interference or police corruption frequently delayed cases for months. Additionally, circuit court sittings were infrequent because of a shortage of judges and travel funds. Some detainees were held in jail for more than two years because of shortages of judges.

e. Denial of Fair Public Trial

The constitution provides for an independent judiciary, and the government generally respected judicial independence in practice. The Supreme Court is the final court of appeal and has original jurisdiction on constitutional matters. The National Court hears most cases and appeals from the lower district (provincial) courts. There also are village courts headed by lay persons (generally local chiefs, known as "big men"), who judge minor offenses under both customary and statutory law.

Trial Procedures

The legal system is based on English common law. The law provides for due process, including a public trial, and the court system generally enforced these provisions. Judges conduct trials and render verdicts; there are no juries. Defendants have the right to an attorney. The public solicitor's office provides legal counsel for those accused of "serious offenses" who are unable to afford counsel. Serious offenses are defined as charges for which a sentence of two years or more is the norm. Defendants and their attorneys may confront witnesses, present evidence, plead cases, and appeal convictions. The shortage of judges created delays in both the process of trials and the rendering of decisions (see section 1.d.). During the year development aid was provided for training and education of the judiciary. Since 2003, as part of an intensive effort by an intergovernmental juvenile justice working group, progress has been made in establishing seven juvenile courts. In addition, police established a unit to divert minors from the formal justice system and monitor their treatment by police.

Political Prisoners and Detainees

There were no reports of political prisoners or detainees.

Civil Judicial Procedures and Remedies

There is an independent and impartial judiciary in civil matters. District courts could order "good behavior bonds," commonly called "protection orders," in addition to ordering that compensation be paid for violation of human rights. However, courts had difficulty in enforcing judgments. Additionally, many human rights matters were handled by village courts, which were largely unregulated. Village and district courts were often hesitant to interfere directly in domestic matters. Village courts regularly ordered compensation be paid to an abused spouse's family in cases of domestic abuse rather than issue a domestic court order.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution prohibits such actions; however, there were instances of abuse. Police raids and searches of illegal squatter settlements and the homes of suspected criminals often were marked by a high level of violence and property destruction. Police units operating in highland regions sometimes used intimidation and destruction of property to suppress tribal fighting (see section 5).

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution provides for freedom of speech and of the press, and the government generally respected these rights in practice. All newspapers included a variety of editorial viewpoints and reported on controversial topics. There was no evidence of officially sanctioned government censorship; however, newspaper editors complained of intimidation tactics aimed at influencing coverage.

Internet Freedom

There were no government restrictions on access to the Internet or reports that the government monitored e mail or Internet chat rooms. Individuals and groups could engage in the peaceful expression of views via the Internet, including by electronic mail.

Academic Freedom and Cultural Events

There were no government restrictions on academic freedom or cultural events.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution provides for freedom of assembly; however, the government often limited this right in practice. Public demonstrations require police approval and 14 days' notice. In recent years police, asserting a fear of violence from unruly spectators, rarely gave approval. Police reportedly received no requests for such approval during the year. However, various groups ignored the legal notice requirements and held meetings and rallies throughout the year. Groups also issued challenges to the requirements, citing conflicts with the constitution. In February Greenpeace held a peaceful anti illegal logging demonstration in downtown Port Moresby. On March 24, NGOs and concerned citizens marched against rape in Port Moresby. There were reports that police intimidated groups attempting to demonstrate during international conferences and events.

Freedom of Association

The constitution provides for freedom of association, and the government generally respected this right in practice. Associations wishing to open a bank account and conduct financial transactions must register with the government. The process of registration was slowed by bureaucratic inefficiency, but there was no policy of denying registration. International affiliation of church and civic groups was permitted freely.

c. Freedom of Religion

The constitution provides for freedom of religion, and the government generally respected this right in practice. The Department of Education set aside one hour per week for religious instruction in the public schools. Religious representatives taught the lessons, and parents chose the class their children would attend. There were no classes for members of non Christian religions, due in part to a lack of qualified instructors, and children whose parents did not wish them to attend the classes were excused.

Societal Abuses and Discrimination

The relationship among religious groups in society was generally amicable. There was no known Jewish community in the country, and there were no reports of anti Semitic acts.

For a more detailed discussion, see the [2006 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2006/\)](https://2009-2017.state.gov/j/drl/rls/irf/2006/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The constitution provides for these rights, and the government generally respected them in practice. The law prohibits forced exile, and the government did not use it.

Protection of Refugees

Although a party to the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, the government has not enacted enabling legislation and has not established a system for providing protection to refugees. In practice the government provided temporary protection to individuals who may not qualify as refugees under the 1951 convention or 1967 protocol.

During the year the government continued to provide protection with support from the UN High Commissioner for Refugees to approximately 2,700 persons residing at the East Awin refugee settlement who fled the Indonesian province of Papua (formerly Irian Jaya). Approximately 5,000 additional refugees lived in villages adjacent to the border with Indonesia.

Registered refugees residing in the East Awin refugee settlement were granted a residence permit that allowed them to travel freely within the country but not to travel abroad.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the right to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections based on universal suffrage. Voters elect a unicameral parliament with 109 members from all 19 provinces and the National Capital District. Any citizen may stand for election; members of Parliament (MPs) must be at least 25 years of age. Because of the large number of candidates, some MPs have won an election with less than 10 percent of the total votes cast under the old "first past the post" system, which was replaced with a limited preferential voting (LPV) system after the last national election in 2002.

Elections and Political Participation

The most recent general election was held in June 2002. Of the 109 seats in Parliament, 77 changed hands. Prime Minister Michael Somare formed a coalition government following the election. Fraud, voter intimidation, theft of ballot boxes, and violence, including rape and murder, marred the election in parts of the country. Due to widespread violence, the Electoral Commission of Papua New Guinea declared elections in six electorates of the Southern Highlands Province a failure. New elections in those districts, financed by Australia and accompanied by very little violence, were held successfully in 2003. All by elections held after the 2002 national election were conducted using the LPV system.

Early in the year the Election Commission discarded all old electoral rolls and held large scale registration drives to prepare new rolls. Many voters who claimed to have registered were turned away from the polls in provincial and district by elections held in August. The government operated National Research Institute reported allegations of bribery and interference in these by elections.

The law provides that a losing candidate may dispute an election result by filing a petition with the National Court. Such petitions may question actions of the winning candidate and his supporters or allege malfeasance by the election officials. The procedure is fair but time consuming and expensive both to initiate and to defend.

There is no law limiting political participation by women, but the deeply rooted patriarchal culture impeded women's full participation in political life. There was one woman in the 109 seat Parliament, compared with two in the previous parliament. She served as minister of community development, the only cabinet position held by a woman. There were no female Supreme Court justices or provincial governors.

There were six minority (non Melanesians) members in the Parliament. Of these, three were in the cabinet, and two were provincial governors.

Government Corruption and Transparency

Corruption at all levels of government was a serious problem, primarily because clan related obligations continued to undermine allegiance to constituents or to the country as a whole.

In March the minister for national planning and monitoring stepped down following referral to the public prosecutor for misconduct. Later he was reappointed to the cabinet. At year's end his case was being reviewed by the leadership tribunal. In August a leadership tribunal found a provincial governor guilty of misconduct in office but reinstated him. Another provincial governor was suspended in September, following referral by the ombudsman for alleged misuse of government funds. At year's end more than 50 government officials were under investigation by the ombudsman's office.

No law provides for public access to government information. The government published frequent public notices in national newspapers and occasional reports on specific topics facing the government; however, it generally was not responsive to individual requests, including media requests, for access to government information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

There were no official barriers to the formation of human rights groups. The government cooperated with both domestic and international human rights NGOs but at times was slow in responding to their requests for information. The International and Community Rights Advocacy Forum, an umbrella group, concentrated on human rights and the environment during the year. The government did not have a human rights ombudsman or commission.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The constitution provides for equal protection under the law irrespective of race, tribe, place of origin, political opinion, color, creed, religion, or sex. Despite these constitutional and other legal provisions, women often faced discrimination. Geographic diversity prevented any one tribe or clan from dominating the country. Successive governments, based on loose coalitions, have consistently avoided favoring any group. Skirmishes and conflicts tended to be based on disputes between clans over issues such as boundaries, land ownership, and injuries and insults suffered by one clan at the hands of another; they were not ethnically based.

Women

Violence against women, including domestic violence and gang rape, was a serious and prevalent problem. In September Amnesty International issued a report highly critical of government efforts to address violence against women. Domestic violence was common and is a crime. However, since most communities viewed domestic violence as a private matter, few victims pressed charges, and prosecutions were rare. Widespread sexual violence committed by police and their unresponsiveness to complaints of sexual or domestic violence served as barriers to reporting by both women and men. Traditional village mores, which served as deterrents against violence, were weakening and were largely absent when youths moved from their villages to larger towns or to the capital. Although rape is punishable by imprisonment and sentences were imposed on convicted assailants, few rapists were apprehended. The willingness of some communities to settle incidents of rape through material compensation rather than criminal prosecution made the crime difficult to combat.

On July 18, a reserve police officer sexually assaulted a six year old girl in a Chinatown police station in Lae when her mother left her there while buying food. Following public protest, police arrested and charged the man. On August 8, HRW visited both Buimo prison and town police stations in Lae, but officials at each place claimed the man was detained in the other location. At year's end no officers had been prosecuted for the beatings and gang rape of women and girls arrested in the raid on the Three Mile Guest House in 2004. In January Madang provincial governor James Yali was sentenced to 12 years' imprisonment after being found guilty for the rape of his sister in law in 2005, but at year's end he remained free and serving as an MP and provincial governor, pending appeal.

Violence committed against women by other women frequently stemmed from domestic disputes. In areas where polygyny was customary, an increasing number of women were charged with murdering one of their husband's other wives. According to HRW, 65 percent of women in prison had been convicted for attacking or killing another woman.

Prostitution is illegal; however, the laws were not enforced, and the practice was widespread. There were no reports of sex tourism during the year. Sexual harassment is not illegal, and it was a widespread problem.

The laws have provisions for extensive rights for women dealing with family, marriage, and property disputes. Some women have achieved senior positions in business, the professions, and the civil service; however, traditional discrimination against women persisted. Many women, even in urban areas, were considered second class citizens. In May the Asia Development Bank issued a country gender assessment that described a society in which women continued to face severe inequalities in all spheres of life: social, cultural, economic, and political.

Village courts tended to impose jail terms on women found guilty of adultery while penalizing men lightly or not at all. By law a district court must endorse orders for imprisonment before the sentence is imposed, and circuit riding National Court justices frequently annulled such village court sentences. Polygyny and the custom in many tribal cultures of paying a bride price tended to reinforce the view that women were property. In addition to the purchase of women as brides, women also sometimes were given as compensation to settle disputes between clans. The courts have ruled that such settlements denied the women their constitutional rights.

According to statistics published in the UN Children Fund's (UNICEF) human development report in 2005, women continued to lag behind men in literacy and education due to discrimination. Adult literacy was 64 percent; 57 percent of women were literate, compared with 71 percent of men. The maternal mortality rate was approximately 370 deaths per 100,000 live births, based on data for the period 1990 2004.

During the year the Ministry of Community Development was responsible for women's issues and had considerable influence over the government's policy toward women.

Children

Independent observers generally agreed that the government did not dedicate significant resources to protecting the rights and welfare of children. Religious and secular NGOs operated programs to protect and develop youth and children. In the past children were well cared for within the family and under traditional clan and village controls; however, small scale studies indicated that this situation has changed over the last decade, especially in areas where households have become isolated from the extended family support system and depend on the cash economy for a livelihood.

Primary education was not free, compulsory, or universal. Substantial fees were charged and posed a significant barrier to children's education. According to a 2005 UNICEF report, the primary school enrollment rate was 79 percent for boys and 69 percent for girls, based on 2000 04 data. Many children did not progress further than primary school. Government provided free medical care for citizens, including children, was no longer available due to budget cuts and deteriorating infrastructure, particularly in rural areas. Boys and girls had equal access to medical care, but many children did not have effective care. Many villages were geographically isolated, and malnutrition and infant mortality rates were very high. Nearly 70 of every 1,000 children born did not survive their first year.

Sexual abuse of children was believed to be frequent. There were cases of commercial sexual exploitation of children in urban areas, including children working in bars and nightclubs. HRW documented numerous instances of police abuse of children (see section 1.c.). Some children were forced to work long hours as domestic servants in private homes, often to repay a family debt to the "host" family.

The legal age for marriage is 18 for boys and 16 for girls. There is a lower legal marriage age (16 for boys and 14 for girls) with parental and court consent. However, customary and traditional practices allow marriage of children as young as age 12, and child marriage was common in many traditional, isolated rural communities. Child brides frequently were taken as additional wives or given as brides to pay family debts and often were used as domestic servants. Child brides were particularly vulnerable to domestic abuse.

Trafficking in Persons

The law does not prohibit trafficking in persons. There were reports of trafficking within the country. Custom requires the family of the groom to pay a "bride price" to the family of the bride. While marriages were usually consensual, women and female children were sometimes sold against their will. There were also reports of Asian women being trafficked into the country to work in the sex industry. Transactional sex was common and often involved the sexual exploitation of children.

The government investigated allegations of corruption among officials dealing with passport issuance and immigration. The allegations primarily involved the illegal issuance of residence and work permits for Chinese or South Asian nationals migrating to the country. Nevertheless, there was concern that the country may have been used as a route for trafficking in persons to Australia.

Persons with Disabilities

Persons with disabilities faced discrimination in education, training, and employment. Through the National Board for the Disabled, the government provided funds to a number of NGOs that provided services to persons with disabilities. The government provided free consultation and treatment for persons with mental disabilities; however, such services were rarely available outside major cities, and the government did not provide other programs or services. Apart from the traditional clan and family system, services and health care for persons with disabilities did not exist in several provinces. No legislation mandates accessibility to buildings. Most persons with disabilities did not find training or work outside the family structure.

National/Racial/Ethnic Minorities

Centuries old animosities among isolated tribes, a persistent cultural tradition of revenge for perceived wrongs, and the lack of police enforcement sometimes resulted in violent tribal conflict in the highland areas. In the last few years the number of deaths resulting from such conflicts has risen due to the availability of modern weapons. Tribal fighting continued in Western Highlands Province. The prevalence of high powered small arms prevented police intervention.

On February 7, persons from a neighboring village reportedly burned down more than 80 houses in Bau Village in Madang Province. One person was reported hospitalized and two were reported missing in the incident. Police investigated the incident; however, at year's end the results of the investigation were not known.

Other Societal Abuses and Discrimination

There were no reports of government discrimination against persons with HIV/AIDS; however, there was a strong societal stigma attached to HIV/AIDS infection that prevented individuals from seeking HIV/AIDS related services, and there were reports that companies have dismissed HIV positive employees after learning of their condition.

Section 6 Worker Rights

a. The Right of Association

The law provides for the right to form and join labor unions, subject to registration by the Department of Labor and Industrial Relations. The government did not use registration to control unions; however, an unregistered union has no legal standing and thus cannot operate effectively. An estimated half of the approximately 250,000 wage earners in the formal economy were organized and were members of approximately 50 trade unions. Most unions representing private sector workers were associated with the PNG Trade Union Congress, which is affiliated with International Trade Union Confederation. The Public Employees Association represented an estimated 30,000 persons employed by national, provincial, and municipal governments, or one third of the public sector work force. The law prohibits antiunion discrimination by employers against union leaders, members, and organizers; however, it was enforced selectively. Unions were independent of the government and of political parties.

b. The Right to Organize and Bargain Collectively

The law provides for the right to engage in collective bargaining and to join industrial organizations, and workers exercised these rights in practice. Under the law, the government has discretionary power to cancel arbitration awards or declare wage agreements void when they are contrary to government policy. The International Labor Organization has criticized this law. The Department of Labor and Industrial Relations and the courts are involved in dispute settlement. Wages above the minimum wage were set through negotiations between employers and employees or their respective industrial organizations.

The law provides for the right to strike, although the government can and often does intervene in labor disputes to require arbitration before workers can legally strike. The law prohibits retaliation against strikers; however, it was not always enforced. Employees of some government owned enterprises went on strike on several occasions during the year, primarily to protest against privatization policies or in pay disputes. These strikes were brief and ineffective. In May an estimated 1,000 teachers in the National Capital District went on strike for several days over a pay dispute.

At year's end no decision had been made regarding the legality of a December 2005 nurses' strike or the disciplinary actions taken against nurses who participated in the strike.

There were no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The constitution forbids slavery and all forms of forced or compulsory labor, including that performed by children, and there were no reports that such practices occurred in the formal economy. Some children were obliged to work long hours as domestic servants in private homes (see section 5).

d. Prohibition of Child Labor and Minimum Age for Employment

The law establishes the minimum working age as 16; for hazardous work, the minimum age is 18. However, children between the ages of 11 and 18 may be employed in a family business or enterprise provided they have parental permission, a medical clearance, and a work permit from a labor office. This type of employment was rare, except in subsistence agriculture. Work by children between the ages of 11 and 16 must not interfere with school attendance. Some children under 18 worked in bars and nightclubs (see section 5).

e. Acceptable Conditions of Work

The Minimum Wage Board, a quasigovernmental body with labor and employer representatives, sets minimum wages for the private sector. The national youth wage, for new entrants into the labor force between 16 and 21 years of age, was set at 75 percent of the adult minimum wage. The minimum wage was \$12.75 (37.50 kina) per week, and although it was above the national per capita income, the minimum wage did not provide a decent standard of living for a worker and family who lived solely on the cash economy.

The law regulates minimum wage levels, allowances, rest periods, holiday leave, and overtime. Although the Department of Labor and Industrial Relations and the courts attempted to enforce the minimum wage law, enforcement was not effective. The law limits the workweek to 42 hours per week in urban areas and 44 hours per week in rural areas. The law provides for at least one rest period of 24 consecutive hours every week; however, enforcement was lax. Enforcement of the Industrial Health and Safety Law and related regulations is the responsibility of the Department of Labor and Industrial Relations. The law requires that work sites be inspected on a regular basis; however, due to a shortage of inspectors, inspections took place only when requested by workers or unions. Workers' ability to remove themselves from hazardous working conditions varied by workplace. Unionized workers had some measure of protection in such situations.

The law protects legal foreign workers. The few illegal foreign workers lacked full legal protection.

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